

Writ of Mandamus Without a Lawyer

Step-by-Step Guide – How I Filed and You Can Too

Based on r/USCIS guide by Secret_Gas3270

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Not legal advice – personal experience only

What is a Writ of Mandamus (WoM)?

Definition

A lawsuit that tells the government: *"You have 60 days to respond or come to court."*

What it IS:

- For **stuck** cases (way beyond normal time)
- Forces USCIS to make a decision
- Speeds things up when nothing else worked

What it is NOT:

- Not an appeal
- Not a guaranteed approval

When to file: No exact rule, but must be OBVIOUSLY taking WAY TOO LONG.

Example: Interview said 1 month → waited 2 years.

The 9 Steps – Complete Overview

- 1 Use AI (Microsoft Copilot) to draft initial WoM – free
- 2 Hire Fiverr lawyer to review/edit – approx \$150
- 3 Identify **5 defendants** (USCIS, AG, Director, Mayorkas, your US Attorney)
- 4 Attach evidence – congressman replies, service requests, screenshots
- 5 Make **6 identical packets** (complaint + evidence)
- 6 File at your federal district court – pay filing fee
- 7 Fill out JS 44 (civil cover sheet) + 5 summons forms (AO 440)
- 8 Serve defendants by certified mail + email USCIS
- 9 File **proof of service** with court after delivery

Result: *“3 business days later – case approved. Card produced in 5 days.”*

Defendants – Who You Must Sue

The 5 Defendants (exactly as on summons)

- 1 **United States Citizenship and Immigration Services (USCIS)**
- 2 **Merrick Garland** – Attorney General of the United States
- 3 **Ur Mendoza Jaddou** – Director of USCIS (check if still current)
- 4 **Alejandro Mayorkas** – Secretary of Department of Homeland Security
- 5 **Markenzy Lapointe** – United States Attorney for YOUR district
(replace with your local US Attorney – 94 federal districts)

Important

Double-check all positions – they change after elections.

For embassy/consular cases: sue State Department + Ambassador instead of USCIS.

Summons Form (AO 440) – One per Defendant

Step-by-Step for Each Summons

- **To:** Write full name and title of the defendant exactly as in your WoM
- **Plaintiff:** Your full name and address
- **Defendant:** Same as above
- Leave **Date** and **Signature of Clerk** blank – court fills those

You need 5 summons forms – one for each defendant.

Attach one stamped summons to each packet after filing.

Civil Cover Sheet (JS 44) – Only One

Fill these fields:

- **Plaintiffs:** Your name (the applicant)
- **County:** Your home county
- **Defendants:** Write “USCIS”
- **County of Defendant:** Prince George’s County (USCIS HQ)
- **Attorneys part:** **leave blank**

Citizenship of Principal Parties and Cause of Action – leave blank.

Mark X in:

- Basis of Jurisdiction: **U.S. Government Defendant**
- Nature of Suit: **465 – Other Immigration Actions**
- Origin: **Original Proceeding**

Sign & date at “Signature of Attorney of Record”

Evidence – Attach to Back of WoM

What to Include (shows you tried everything)

- Congressman/senator replies
- USCIS service requests with generic responses
- Emma chat screenshots
- CIS Ombudsman request
- Original receipt notice (I-797)

How to organize:

- Create an “Exhibit A” cover page (big letters in Word)
- Behind it, attach that evidence
- Repeat for Exhibit B, C, D, etc.
- Attach all exhibits to the back of your WoM complaint

Make 6 identical packets – each has WoM + all exhibits.

Serving the Defendants – Certified Mail + Email

By Certified Mail / Overnight:

- One packet per defendant
- Attach stamped summons to front
- Use addresses from WoM (page 2)
- Save ALL tracking numbers

Email to USCIS (required):

- Send to:
uscis.serviceofprocess@uscis.dhs.gov
- Attach: Summons + WoM + evidence as **compressed PDF**
- Keep auto-reply email as proof

After all delivered: File **Proof of Service** with the court.

- Print USPS delivery confirmations
- Attach email proof to USCIS
- File at clerk's office

Proof of Service – What to File

Document Structure

- ① Caption: Same as your WoM (case number already assigned)
- ② Title: "PROOF OF SERVICE"
- ③ For each defendant, state:
 - Name and title
 - Method of service (certified mail / overnight)
 - Tracking number
 - Date delivered
 - Attach USPS delivery confirmation printout
- ④ For USCIS: also state email sent + attach auto-reply
- ⑤ Sign under penalty of perjury

After filing Proof of Service, the court will track the 60-day response deadline.

Embassy or Consular Cases – Different Defendants

If your case is stuck at an embassy (221g, NIV, IV after NVC)

Same process – same 6 copies – same court – but **different defendants**:

Sue these instead:

- ① U.S. Department of State
- ② Secretary of State
- ③ Your embassy (e.g., “U.S. Embassy Mumbai”)
- ④ Ambassador of that embassy
- ⑤ Attorney General
- ⑥ Your local US Attorney

Mail to:

- State Dept: 2201 C Street NW, Washington, DC 20520
- Your embassy address (google it)

Email your embassy instead of USCIS

After USCIS Approves – Motion to Dismiss

Once you have your green card / approval in hand

- You must file a **Motion to Dismiss** with the court
- You do NOT need to mail/serve defendants again – court does that
- Use the outline from OP's Google Drive link
- Wait until card *physically in hand* before dismissing

If USCIS asks for an extension (before approval):

- You can consent or refuse
- If you refuse and they miss 60-day deadline → file Motion for Default

Real Results – It Works

From the original post comments

- “3 business days later after serving all defendants – my case was approved.”
- “5 days after approval – card was produced and mailed.”
- “Filed on Monday. Approved today.” – multiple users
- “New card is being produced 2 days after submitting WoM.”
- “7 years waiting. Filed WoM. Finally got a decision.”

You saved \$5,000–\$10,000 in lawyer fees.

Do it in one day. Serve fast. Get your case moving.

Final Checklist Before You Go to Court

- ☐ WoM drafted (AI + Fiverr lawyer review)
- ☐ 5 defendants correctly named (check current office holders)
- ☐ Evidence exhibits (A, B, C...) attached – congressman replies, service requests
- ☐ 6 identical packets printed (1 for court, 5 for defendants)
- ☐ Civil cover sheet (JS 44) filled – only one
- ☐ 5 summons forms (AO 440) – one per defendant
- ☐ Filing fee ready (or fee waiver)
- ☐ After filing: attach stamped summons to each packet
- ☐ Serve by certified mail + email USCIS
- ☐ Save all tracking numbers + email auto-reply
- ☐ File Proof of Service after all delivered

Then wait 20–60 days. USCIS will move.

No lawyer? No problem.

This guide does not exist anywhere else on the internet – until now.

Read the WoM template carefully. Fill in the red sections.
Change personal details. Serve fast.

Feed some cats instead of paying a lawyer \$10,000.

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